

HOUSE No. 5614

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 29, 2026.

The committee on Ways and Means, to whom was referred the Bill authorizing the release or exclusion of certain land from conservation restrictions in the town of Deerfield (House, No. 4483), reports recommending that the same ought to pass with an amendment substituting therefor the accompanying bill (House, No. 5614) [Local Approval Received].

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the release or exclusion of certain land from conservation restrictions in the town of Deerfield.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding sections 32 to 37, inclusive, of chapter 7C of the
2 General Laws or any other general or special law to the contrary, the commissioner of capital
3 asset management and maintenance, in consultation with the commissioner of conservation and
4 recreation, may execute a certificate of release or amendment of conservation restriction to
5 release or exclude from a conservation restriction granted to the department of environmental
6 management, predecessor to the department of conservation and recreation, by USGen New
7 England, Inc., predecessor in title to Great River Hydro, LLC, that portion of land as lies within
8 the limits of lands to be acquired by the town of Deerfield for the Massachusetts Department of
9 Transportation's rehabilitation of Upper road over the Deerfield river in the town of Deerfield.
10 The portion of land is more particularly described in subsection (b). The conservation restriction
11 is described in book 3812, page 90, dated July 18, 2001 and recorded in the Franklin county
12 registry of deeds. The land for the conservation restriction is shown on maps on file with the
13 federal energy regulatory commission, license No. 2323.

(b) The portion of land to be released or excluded pursuant to subsection (a) is approximately 15,977 square feet and located along the northwesterly side of Stillwater road and Upper road, shown as permanent easement parcels E-1, E-2, E-3, D-S-1, D-1, S-1 and PUE-6 on plan sheets No. 9 through 11, temporary construction areas parcel TCA-1 on plan sheet No. 9 and temporary occupancy areas parcels A, B, C, D and E and further TCA-1 on said plan sheets in a preliminary set of right of way plans entitled "Upper Road Over Deerfield River (Bridge No. D-06-001 (OPP)), in the Town of Deerfield, Franklin County, Preliminary Right of Way Plans" except as otherwise noted, to be filed with the chief engineer of the highway division of the Massachusetts Department of Transportation, and recorded with the Franklin county registry of deeds. The lands are partially identified on the Deerfield town assessors' maps as parcel ID No. 89-11 and 89-13, and are fully and presently owned by Great River Hydro, LLC, successor in title to USGen New England, Inc., pursuant to a deed recorded in the Franklin county registry of deeds in book 4823, page 84, and as clarified by the affidavit recorded in book 5192, page 154, of the same.

(c) All parcels to be used for this construction project shall be restored to their condition prior to the construction project to the furthest extent possible considering the permanent structures to be installed thereon, in order to protect the conservation values of the surrounding lands.

SECTION 2. (a) As mitigation for the release or exclusion described in section 1, the town of Deerfield shall convey to the commonwealth, to be held under the care and control of the department of conservation and recreation for the purposes of conservation and recreation pursuant to Article XCVII, a conservation restriction as defined in section 31 of chapter 184 of the General Laws over certain land in the town of Deerfield consisting of approximately 5.5

acres along the Deerfield river, located on Mill Village road, formerly known as Martins Falls road, identified on the Deerfield town assessors' maps as parcel ID No. 87-8, which is currently a vacant, undevelopable parcel of land and presently under the care, custody, management and control of the town of Deerfield select board pursuant to a deed recorded in the Franklin county registry of deeds in book 973, page 319. The land is shown on a plan titled "Plan of Land for Proposed Conservation Restriction Martins Falls Road Located in Deerfield, Massachusetts Prepared for the the Town of Deerfield", dated April 14, 2025, on file with the town of Deerfield.

(b) As additional mitigation for the release or exclusion, the town of Deerfield shall ensure access by grant of a license to the commonwealth, over other lands owned by Great River Hydro, LLC, which the department of conservation and recreation has a conservation restriction over, to enable the department of conservation and recreation and its agents to access the land by foot described in subsection (a) from a public way, and shall make improvements to such access area necessary for its use by the department. The precise location of the access area shall be determined by agreement between the town of Deerfield and the commissioner of conservation and recreation.

(c) If the appraisals conducted pursuant to section 3 determine that the fair market value or value in use, whichever is greater, of the land and interests in land to be conveyed to the commonwealth pursuant to this section is less than the corresponding value of the land authorized for release or exclusion pursuant to section 1, the town of Deerfield shall compensate the commonwealth in an amount equal to 110 per cent of the difference. The town of Deerfield shall pay such sum to the department of conservation and recreation for deposit into the

Conservation Trust established in section 1 of chapter 132A of the General Laws, to be used to acquire land or interests in land subject to Article XCVII, including due diligence costs.

SECTION 3. The value of the property described in this act shall be determined by an independent professional appraisal of its fair market value and value in use prepared in accordance with the usual and customary professional appraisal practice by a qualified appraiser commissioned by the commissioner of capital asset management and maintenance, in consultation with the commissioner of conservation and recreation. The commissioner of capital asset management and maintenance shall submit the appraisal and a report thereon to the inspector general for review and comment. The inspector general shall review and approve the appraisal, and the review shall include an examination of the methodology utilized for the appraisal. The inspector general shall prepare a report of the review and file the report with the commissioner of capital asset management and maintenance, and the commissioner of capital asset management and maintenance shall submit copies of the appraisal, the report thereon and the inspector general's review and approval and comments, if any, to the house and senate committees on ways and means and the chairs of the joint committee on state administration and regulatory oversight at least 15 days prior to the execution of the conveyance authorized in section 1.

SECTION 4. The Massachusetts Department of Transportation shall assume all costs associated with engineering, surveys, appraisal, deed preparation and other expenses necessary to execute the conveyances authorized in this act.

SECTION 5. Except as partially released or amended in accordance with this act, the conservation restriction identified in section 1 shall remain in full force and effect.

SECTION 6. This act shall take effect upon its passage.